

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 26, 2016

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Jim Brown, Bryan Cook, Richard Johnson, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor, Jeff White and Annette Williams. Also present: Carol Intlekofer, City Clerk, and Mark Stewart, representing Davis and Cannon, LLP, Interim City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Cook moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 12, 2016. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Cook moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry, Mayor Kaysen provided information available on vouchers payable to the following: Gabriel Roeder Smith Consultants & Actuaries (services for actuarial post employment benefits); Reiman Corp., (West Lincolnway streetscape and landscaping); S&J Signs, Inc. (traffic control/barricades for street work in Saddle Ridge). During comments regarding the West Lincolnway landscaping project, it was noted potential fund raising efforts by the private sector may be conducted for additional funding for improvements. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE - 2ND READING - Repealing Section 9.12.090, Skateboards and Similar Devices Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Catherine Fuller and Keith Coombes, owner of Ernie November, spoke in favor of the ordinance. Topics discussed included: Stereotyping, alternative transportation modes assisting with downtown congestion; current city code restriction; amount of fine/penalty for violators, and suggestion that prohibiting skateboards within the Depot Plaza could be considered if that was an area of concern. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Upon inquiry, Chief Brian Kozak, Police Department, stated he hasn't had any positive or negative feedback regarding the ordinance from the Downtown Development Authority or downtown business owners. He explained there have been very few citations issued in the last several years as monitoring downtown

skateboarding is not a high priority for officers, and added that skateboarding could still be restricted in areas such as the Depot Plaza if signs are posted. He advised that a citation fine can be as high as \$750 as it is a misdemeanor. Discussion followed and included the following topics: Currently restricted areas; Depot Plaza signed as no skateboarding; reasons for implementing the initial ordinance; other transportation options being used in addition to skateboards; law enforcement priorities; property damage; skateboard park, located in Brimmer Park, implementation and history of same; amount of fine that can be assessed to violators; lack of objection being received on the proposed ordinance from downtown businesses, and wording contained in the ordinance referencing "or similar devices". Motion failed. Voting "yes" -- Mr. Cook, Mr. Johnson, Mr. Roybal and Mr. White. Voting "no" -- Mr. Brown, Mr. Luna, Dr. Rinne, Mr. Shanor, Ms. Williams and Mayor Kaysen.

ORDINANCE - 2ND READING - Creating the Pump House Restricted Use Control Area Overlay District, pursuant to Section 5.6.7 of the City of Cheyenne Unified Development Code for Lots 12 through 22, Block 410, Original City of Cheyenne, including all of the adjacent vacated alley (16'), easterly half of vacated Dillon Ave., westerly half of vacated Snyder Ave., and all of the vacated 15th St. (53.8'), per Ordinance 3244; and Lots 12 through 18 and the westerly 14 feet of Lot 19, Block 411, Original City of Cheyenne, including easterly half of vacated Snyder Ave., and all of the vacated 15th St. (53.8'), per Ordinance 1598. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - 2ND READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential to NB Neighborhood Business for the West 7 Feet of Lot 2 and all of Lots 3-10, Block 7, Fairview Addition Resubdivision, City of Cheyenne, Laramie County, Wyoming, located at 2811 E. 13th Street between Natrona Avenue and Platte Avenue. Dr. Rinne moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - 2ND READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to MR-2 Medium-Density Residential-Developing for Lots 15-18, Block 1, Resubdivision of Lake Minnehaha Addition, City of Cheyenne, Laramie County, Wyoming (located north of and adjacent to East 13th Street, east of Fremont Avenue). Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - 2ND READING - Annexing to the City of Cheyenne, Wyoming, a parcel of land of approximately .575 acres of land situated in a portion of the NW¼ of Section 12, T.13N., R.67W., of the 6th P.M., Laramie County, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Dr. Rinne advised that pursuant to the Public Services Committee meeting on September 20, 2016, a motion carried to recommend an amendment by substitute ordinance, however, since the Committee meeting, it had been brought to his attention that legal staff has determined that wording contained in the proposed substitute should be further revised, and that a new substitute will be presented at the next Committee meeting for consideration. Therefore, he would not be making a motion to amend by substitute ordinance. Dr. Rinne moved to amend by

substitute map, seconded by Mr. Roybal. Motion to amend carried voting “yes” -- all members of the governing body. Main motion as amended carried. Voting “yes” -- all members of the governing body.

ORDINANCE - 2ND READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LI Light Industrial (County) to LI Light Industrial for that portion of the NW¼ of Section 12, T.13N., R.67W., of the 6th P.M., Laramie County, Wyoming (west of Southwest Dr. and north of Interstate 80). Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - 1ST READING - Amending Ordinance No. 4147, annexing to the City of Cheyenne, Wyoming, Lot 11, Block 4, Homestead Addition, First Filing Replat, and portions of: Section 10, the E½ of Section 4, (including a portion of Cheyenne Irrigated Gardens Tracts 4 & 5, falling north of Interstate 80 R/W), the W½ of Section 3, the W½E½ of Section 3, and all of the S½SW¼ of Section 11 Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming (located east of and adjacent to S. College Drive, and at the NW, SW, SE corners of the intersection of I-80 and College Drive) – referred to Public Services Committee (sponsor -- Dr. Mark Rinne).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Murray Hill Estates 5th Filing, a replat of Tracts 52 and 53, Murray Hill Estates, 3rd Filing, Laramie County, Wyoming (located west of and adjacent to Fox Ridge Drive, south of Twin Mountain Road). Dr. Rinne moved to adopt, seconded by Mr. Roybal. Dr. Rinne moved to amend by revised County Final Plat map that addresses staff conditions with the exception of the following revised staff conditions, seconded by Mr. Roybal: #1 - add trust date for John F. Hartman Revocable Trust under signature line in dedication, and #2 - add the word “Estates” in the dedication such that it reads “Murray Hill Estates, 5th Filing”. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion as amended carried. Voting “yes” -- all members of the governing body.

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Waterford Square 2nd Filing, of a replat of Lots 2 thru 19 and Lots 21 through 57, Block 6, Waterford Square, City of Cheyenne, Laramie County, Wyoming (located south of I-80, between Morrie Avenue and Avenue C-4). Dr. Rinne moved to adopt, seconded by Mr. Roybal. Dr. Rinne moved to postpone to October 10, 2016, seconded by Mr. Roybal. It was advised the postponement is to allow the developer additional time to review staff conditions. Motion to postpone carried. Voting “yes” -- all members of the governing body.

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a replat of all of Lots 1 thru 11, inclusive, Block 1, and that adjacent 15' alley R/W; and all of Lots 1 thru 11, inclusive, Block 2, and that adjacent 15' alley R/W; and those adjacent portions of 6th Street, Glen Avenue and Southwest Drive, all in Warren Glen Addition; and all of Lot 3, replat of a portion of Warren Glen Addition, City of Cheyenne, and a previously unplatted parcel, all situated in the NW ¼ of Section

12, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming – referred to Public Services Committee (sponsor – Dr. Mark Rinne).

Recommendation by the Planning Commission to conditionally approve the Sweetgrass Planned Unit Development Preliminary Plan for the property consisting of the following parcels of land situated in Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming: the Southeast Quarter of the Southeast Quarter (SE $\frac{1}{4}$ SE $\frac{1}{4}$) of Section 10; the South Half of the South Half of the West Half (S $\frac{1}{2}$ S $\frac{1}{2}$ W $\frac{1}{2}$) of Section 11; the West Half (W $\frac{1}{2}$) of Section 14; All of Section 15; All of Section 16 lying South of College Drive right-of-way line and EXCEPT that parcel recorded June 26, 1991 by Warranty Deed filed in Book 1304 Page 1805, Laramie County, Wyoming records described as follows: Beginning at a point on the West line of said Section 16, from which the Northwest corner thereof bears N.0°50'32"E., a distance of 1320.58 feet; thence S.89°42'54"E., a distance of 160.00 feet; thence S.0°50'32"W., a distance of 160.00; thence N.89°42'54"W., a distance of 160.00 feet to a point on the West line of said Section 16; thence N.0°50'32"E., along said West Line, a distance of 160.00 feet to the point of beginning. Exception containing 0.5877 acres more or less; and all of Section 21. All of the above containing 2349.54 acres more or less. (generally located south of College Drive and east of Avenue C). Boyd Wiggam, Wyoming Liberty Group, spoke about staff condition #3 that contains a restriction that no part of the proposed park area shall serve as a storm water detention facility, and commented on the condition contrasting with policy previously adopted in the PlanCheyenne document. Dr. Rinne moved to acknowledge the Planning Commission's recommendation to conditionally approve with staff conditions #1 through 4 as written in the staff handout provided on 09-20-16, seconded by Mr. Roybal. Dr. Rinne moved to postpone to October 10, 2016, seconded by Mr. Roybal. It was noted the developer requested postponement to allow for further staff discussion regarding recommendations. Motion to postpone carried. Voting "yes" -- all members of the governing body.

County Preliminary Plat for Country Homes Fifth Filing, Menkins Corner Second Filing, and Barta Subdivision, a replat of a portion of Country Homes Subdivision Lot 8 and the S $\frac{1}{2}$ Lot 1 Block 4, being situated in a portion of the Northwest $\frac{1}{4}$ Section 17, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located southwest of the intersection of College Drive and South Greeley Highway). Dr. Rinne moved to acknowledge the Planning Commission's recommendation to approve with staff conditions #1 through 4, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Capitals Youth Hockey Association, for 2016 - 2017 youth hockey season at the City-owned Ice and Events Center. Motion (per consent agenda) carried. (#6582)

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Old Puckers Hockey League, for 2016 - 2017 hockey season at the City-owned Ice and Events Center. Motion (per consent agenda) carried. (#6583)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Leslie Burch for crime victim assistance services. Motion (per consent agenda) carried (in the base salary amount of \$48,878.52). (#6584)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Brenda Johnson for crime victim assistance services. Motion (per consent agenda) carried (in the

base salary amount of \$35,59.12). (#6585)

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Erin A. Williams for crime victim assistance services. Motion (per consent agenda) carried (in the base salary amount of \$24,700.00). (#6586)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and State of Wyoming Department of Family Services, for kinship advocacy services for relatives of displaced, at-risk youth. Motion (per consent agenda) carried. (#6587)

Contract Modification No. 6 to Contract No. 6219 between the City of Cheyenne, Parks and Recreation Department, and RECCO Inc., dba Five - R Company, for the Cheyenne Botanic Gardens Project to increase the Guaranteed Maximum Price (1% Specific Purpose Sales & Use Tax). Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to postpone to October 10, 2016, seconded by Mr. Luna. It was noted postponement is to provide time to clarify funding involving the modification. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] Consideration of Bid #E-2-17 for the sale of surplus property described as all of Lot 13, Block 3, Rayer Addition, Laramie County, Wyoming (located at 1900 East 18th Street) (revenue to the City). Motion (per consent agenda) carried (accepted bid from Marc Thayer in the total amount of \$111,000.00).

[CA] Consideration of Bid #E-3-17 for furnishing ice control product for the Public Works Department (2015 - 2018 1% Sales Tax). Motion (per consent agenda) carried (accepted bid from Desert Mountain Corporation of Riverton, Wyoming, in an amount not to exceed \$124,510.00).

[CA] Consideration of Bid #E-5-17 for furnishing 2000 95-gallon and 65-gallon automated refuse carts for the Sanitation Division (Waste Management fund). Motion (per consent agenda) carried (accepted bid from Otto Environmental Systems, LLC of Charlotte, North Carolina, in an amount not to exceed \$101,408.00).

[CA] Consideration of Bid #S-1-17 for a contract between the City of Cheyenne, Engineer Department, and Reiman Corporation, Cheyenne, Wyoming, for the 17th Street Lighting, Phase 1 project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #S-2-17 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corporation, Cheyenne, Wyoming, for the Cahill Park All-Abilities Playground project (State & Local, Miscellaneous Funds, Development Impact, Park Facilities) -- referred to Finance Committee.

[CA] Consideration of Bid #S-3-17 for a contract between the City of Cheyenne, Parks & Recreation Department, and S&S Builders, LLC, Cheyenne, Wyoming, for the Cheyenne Greenway, Saddle Ridge Greenway Connector project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #E-6-17 for furnishing one new 2016 John Deere 1600 Turbo Series II commercial wide area mower for the Parks Division (2011 - 2014 1% Sales Tax) -- referred to

Finance Committee.

Appointment of Sam E. Galeotos to the Downtown Development Authority Board. Mr. Shanor moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body with the exception Mr. Brown voting "no", and Mayor Kaysen who did not vote (Mayoral appointee).

[CA] Consideration to purchase playground equipment for Cahill Park from Recreation Plus and Dakota Playground (State and Local grants). Motion (per consent agenda) carried (approved the purchase from Recreation Plus of Denver, Colorado, in the amount of \$292,668.00 and Dakota Playground of Fargo, North Dakota, in the amount of \$43,000.00 for a total purchase price of \$335,668.00).

Announcement was made of the Appointment of Michelle Woerner to the Mayor's Council for People with Disabilities, to be confirmed October 10, 2016.

Under other business, Mr. Johnson expressed appreciation to Dr. Rinne for participating in a recent event involving the Boys and Girls Club.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:48 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
October 6, 2016